

SENATE BILL No. 149

DIGEST OF INTRODUCED BILL

Citations Affected: IC 9-21-3.7; IC 35-52-9.1-12.8.

Synopsis: Tolling transponders. Allows a person who: (1) lives or works in a county where there is a toll road or tollway; and (2) pays for tolls assessed while driving on the toll road or tollway with a transponder; to apply for a credit to be added to the person's qualifying account for use towards future tolls. Provides that a person who pays for tolls using a transponder that is connected to a qualified account that is not registered to: (1) the person; (2) the person's employer; (3) a car rental company that owns the car being driven by the person; or (4) another person with the same permanent residence as the person; commits a Class B misdemeanor.

Effective: July 1, 2026.

Pol Jr.

January 5, 2026, read first time and referred to Committee on Homeland Security and Transportation.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 149

A BILL FOR AN ACT to amend the Indiana Code concerning motor vehicles.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 9-21-3.7 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]:

4 **Chapter 3.7. Tolling Transponders**

5 **Sec. 1. As used in this chapter, "qualifying account" means an**
6 **active electronic toll collection customer account associated with**
7 **a certain transponder.**

8 **Sec. 2. As used in this chapter, "toll road" has the meaning set**
9 **forth in IC 9-21-3.5-7.**

10 **Sec. 3. As used in this chapter, "tollway" has the meaning set**
11 **forth in IC 9-21-3.5-8.**

12 **Sec. 4. As used in this chapter, "transponder" means a device,**
13 **placed on or within a motor vehicle, that is capable of transmitting**
14 **information used to assess or collect tolls.**

15 **Sec. 5. (a) A person with a qualifying account that:**

16 **(1) has a permanent residence or a place of employment**
17 **located in a county with a toll road or tollway; and**



(2) pays for tolls assessed while traveling on the toll road or tollway described in subdivision (1) in the person's personal vehicle through the person's transponder;

may apply for a future credit on the person's transponder in an amount equal to seventy-five percent (75%) of the amount paid for tolls since the person's last application for a future credit under this subsection.

(b) A person may apply for a future credit under subsection (a) not more than once every thirty (30) days.

(c) Not later than December 31, 2026, the bureau shall provide a method for applying to the bureau for a future credit under subsection (a) on the bureau's website. The bureau may require a person to provide proof of residency or proof of employment in a county with a toll road or a tollway on a periodic basis.

(d) The bureau must provide the person administering the qualified account with the amount of the credit not later than ten (10) days after an application is approved. The person administering the qualified account must load the credit on to the qualified account not later than ten (10) days after the bureau provides the person with the amount of the credit.

(e) The state comptroller shall make payments to an operator (as defined in IC 9-21-3.5-4) from the state general fund at least once every ninety (90) days in the amount of those credits used by qualified accounts to pay for tolls that would have been paid to the operator.

Sec. 6. A person who uses a transponder that is not registered under a qualifying account owned by:

- (1) the person;
- (2) the person's employer;
- (3) a car rental company that owns the car being driven by the person; or
- (4) another person with the same permanent residence as the person;

to pay for a toll or user fee while traveling on a toll road or tollway commits a Class B misdemeanor.

Sec. 7. All information collected by a transponder and regarding a qualifying account is confidential and not subject to disclosure under IC 5-14-3.

SECTION 2. IC 35-52-9.1-12.8 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 12.8.** IC 9-21-3.7-6 defines a crime concerning traffic regulation.

